

1. *Line 119 through 126:*

119       (b) is obtained before the generation of the intimate image; and  
120       (c) may be revoked at any time.

121       (3) (a) "Counterfeit intimate image" means an intimate image that has been created or  
122 generated through the use of artificial intelligence technology,  $\hat{H} \rightarrow$  or  $\leftarrow \hat{H}$  machine  
122a learning  $\hat{H} \rightarrow [ \{ \_ \} ] \leftarrow \hat{H}$   
123  $\hat{H} \rightarrow [ \{ \text{digital editing tools, or other technological means} \} ] \leftarrow \hat{H}$  to depict the likeness of an  
124 identifiable individual.

125       (b) "Counterfeit intimate image" includes a "digital forgery" as that term is defined in  
126 the Take It Down Act.

2. *Line 131 through 138:*

(b) "Distribute" includes the generation of a counterfeit intimate image by a generation service and the subsequent provision of that counterfeit intimate image to the user.

(6) "Generate" means to create, produce, compose, materially edit, or facilitate the creation of an intimate image through the use of artificial intelligence technology  $\hat{H} \rightarrow [ \{ \text{, digital} \}$

$\{ \text{editing} \} ] \leftarrow \hat{H}$

$\hat{H} \rightarrow [ \{ \text{tools, or other technological means} \} ] \leftarrow \hat{H}$  .

(7) "Generation service" means a person that operates, maintains, or provides an interactive computer service that:

(a) enables users to generate intimate images;

3. *Line 178 through 183:*

## PART 2. Generation Services

179       **13-72b-201 (Effective 01/01/27)**Unlawful distribution of non-consensual  
180 counterfeit intimate images.  
181       (1) The distribution of a counterfeit intimate image without  
181a the consent of the identifiable  
182 individual depicted in the image is a violation of the individual's reasonable expectation  
183 of privacy.

4. Line 475 through 484:

475 assembly of a capture device.

476 (4) "Compliant system provenance data" means system provenance data that is compliant  
477 with widely adopted specifications of an established standards-setting body.

478 (5) ~~§~~ → ~~(a)~~ ← ~~§~~ "Covered provider" means a person that creates, codes, or

478a otherwise produces a

479 generative artificial intelligence system that:

480 ~~§~~ → [ { ~~(a)~~ } ] ~~(i)~~ ← ~~§~~ has over 1,000,000 monthly visitors or users; and

481 ~~§~~ → [ { ~~(b)~~ } ] ~~(ii)~~ ← ~~§~~ is publicly accessible within the geographic boundaries of the

481a state.

481b ~~§~~ → ~~(b)~~ "Covered provider" does not include a person that creates, codes, or  
481c otherwise produces a generative artificial intelligence system that is used exclusively  
481d for the person's internal business operations and is not made publicly accessible. ← ~~§~~

482 (6) "Digital signature" means a cryptography-based method that identifies the user or entity  
483 that attests to the information provided in the signed section.

484 (7) "Generative artificial intelligence system" means an artificial intelligence system that

5. *Line 522 through 529:*

522 accessible manner:

523 (i) directly through the large online platform's user interface described in Subsection

524 (1)(b);

525 (ii) by allowing the user to download ~~§~~ → [ { ~~a version of the content with~~ } ] ← ~~§~~ the

525a content's

526 ~~§~~ → [ { ~~attached~~ } ] ← ~~§~~ ~~§~~ → compliant ← ~~§~~ system provenance data; or

527 (iii) by providing a link to the content's system provenance data displayed on an

528 internet website or in another application provided either by the large online

529 platform or a third party.